ASMDEV INCORPORATED (PVT) LTD
versus
JOH AND LEWIS INVESTMENT (PVT) LTD
and
JOHANNE CHARASA
and
KNOWLEDGE MAZIVANHANGA
and
PETER MURENGU
and
DEPUTY SHERIFF ZIMBABWE

HIGH COURT OF ZIMBABWE
**MAMBARA J**
HARARE;19 and 24 March 2026

***Opposed Chamber application for Contempt of Court***

*E Chibondo*, for the applicant
*A Chihombori*, for 1st -4th respondents

MAMBARA J:

**Introduction**

[1] MAMBARA J: This is a chamber application for contempt of court brought in terms of rule 79 of the High Court Rules, 2021.

The applicant seeks the vindication and enforcement of an extant interdict that prohibits the respondents from conducting mining activities at the Lonrho Mining site.

[2] The record shows that on 14 August 2025, this court granted an order (in the matter referenced in the papers as HCH2159/25 / HH473/25) interdicting the respondents from carrying out mining activities at the disputed Lonrho Mining site, and directing law-enforcement assistance in the maintenance of peace and the enforcement of the order.

[3] It is common cause, and in any event demonstrated on the papers, that the respondents were served with the order and were fully aware of its terms. The record further indicates that the respondents challenged the order on appeal but the appeal did not succeed, with the consequence that the interdict remained extant and binding.

[4] The applicant contends that notwithstanding service and knowledge of the order, and notwithstanding the unsuccessful challenge thereto, the respondents have continued to conduct mining activities at the Lonrho Mining site in defiance of the court order. The applicant relies on photographic and video material placed before the court, together with a report (referred to in argument as annexure "I") and a video/report summary (annexure "J", referenced in argument as being on page 41 of the record).

[5] The draft order initially sought the imposition of a fine of US$500,000.00. When queried by the court on proportionality, counsel for the applicant properly conceded that the amount might be excessive and urged the court to impose an appropriate fine.

**Parties' submissions**

[6] Mr Chibondo, for the applicant, submitted that the elements of contempt are present: there is an extant order; the respondents knew of it, having been served and having appealed; and they have deliberately conducted mining activities at the Lonrho Mining site contrary to that order. He pressed that the court must protect its authority by imposing a meaningful sanction.

[7] Ms Chihombori, for the respondents, raised several points *in limine*. First, she invoked the "dirty hands" principle, contending that the applicant should not be heard because it had not paid costs in the matter referenced as HCH4420/25, relying on *Makoni* v *Makoni* SC 7/18.

[8] Second, she attacked the admissibility and validity of the affidavits and annexures, arguing that the founding papers were defective and contained inadmissible hearsay; that the applicant relied on evidence gathered by third parties; and that the report at page 41 (especially clause 7) was not in affidavit form and therefore could not be relied upon—reliance being placed on *Barron* v *Barron* HB 92/21. She moved that annexure "I" and the video material be expunged as inadmissible.

[9] Third, she submitted that the matter is riddled with material disputes of fact (the respondents denying that they are conducting mining activities in the Lonrho area) and that it should be referred to trial; alternatively, that an inspection in loco is necessary before determination. She relied on *Sithole* v *Sithole* HH 139/18 on the approach, and on the general principle that disputes of fact cannot be resolved on affidavit.

**Issues for determination**

[10] The issues that fall for determination are these: (a) whether any of the points *in limine* are well taken, in particular the "dirty hands" point and the evidentiary objections; (b) whether, on the merits, contempt of court has been established; (c) if so, what sanction is appropriate, and in what form it should be crafted to ensure legality, fairness, and enforceability.

**Applicable law**

[11] Court orders are not polite requests. The Constitution entrenches the rule of law and the institutional authority of the courts. Section 164(3) provides in peremptory terms that an order or decision of a court "binds the State and all persons" to whom it applies and "must be obeyed by them."

[12] Rule 79 of the High Court Rules, 2021 provides that proceedings for contempt of court are instituted by chamber application, which must set forth the grounds distinctly and be supported by an affidavit of the facts. The Rules also contemplate enforcement through writs: where a fine is imposed, a writ in Form 47 issues for execution; where imprisonment is imposed, the registrar furnishes the sheriff or a constable/peace officer with a writ of personal attachment and committal (Form 48), to be executed upon delivery.

[13] Our law has consistently held that before holding a person in contempt, the court must be satisfied both that the order was not complied with and that the non-compliance was wilful. It has been emphasised that contempt carries drastic consequences and therefore requires scrupulous adherence to fairness and the rules of natural justice.

[14] The respondents' objections on evidence must be appreciated against the statutory framework. Section 48 of the Civil Evidence Act [*Chapter 8:01*] empowers a court to exclude evidence obtained illegally or improperly, or evidence likely to cause confusion, waste of time, or undue prejudice, but it also requires the court to weigh probative value, the interests of justice between the parties, and public interest.

[15] As to affidavits, rule 58(4) stipulates that an affidavit filed with a written application must be made by the litigant or by a person who can swear to the facts or averments set out therein, and it may be accompanied by documents verifying those facts. The court's emphasis is on substance: whether the evidence presented is sworn to (where required) and whether it meets the minimum thresholds of reliability and fairness.

[16] Disputes of fact in motion proceedings are not, by themselves, a passport to trial. The law is that not every dispute must be referred to trial; the court must adopt a robust, common-sense approach, and a respondent cannot create a genuine dispute by bare denials.

**Determination and order**

[17] I deal first with the dirty hands point. *Makoni* v *Makoni* SC 7/18 illustrates that a court may, in an appropriate case, stay proceedings pending payment of taxed costs where it would be manifestly unfair to allow a litigant to pile proceedings on an opponent without first paying outstanding wasted costs, particularly where the indebtedness is acknowledged.

[18] The present matter is distinguishable. The alleged default relates to costs in other proceedings; the papers reflect contestation around the status, service, and taxation processes, and the alleged "unclean hands" are not established with the clarity that would justify the drastic step of non-suiting a litigant on that basis.

In any event, this is not an indulgence sought in vacuo; it is an application aimed at enforcing an extant court order and protecting the authority of the court itself—an authority that the Constitution commands all persons to respect by obeying court orders.

**The dirty hands point is accordingly dismissed.**

[19] I turn to the evidentiary objections. The respondents urge the expungement of annexure "I" and the video evidence, contending that the material is not properly before the court and is inadmissible. The applicant's case, however, is not a speculative complaint: it is anchored in a prior order, knowledge, and alleged ongoing violation, supported by documentary and photographic/video material.

The question is whether the court should shut its eyes to the material altogether at the threshold stage.

[20] Section 48 of the Civil Evidence Act is not a blunt instrument of exclusion; it establishes a discretion guided by relevance, probative value, fairness, and public interest.

Even if there were regulatory or propriety concerns about the method of collection, the court must weigh the probative value of evidence aimed at proving a continuing breach of a court order—something going to the heart of the rule of law—against any demonstrated prejudice.

On the papers, the respondents do not demonstrate prejudice of such magnitude as to justify the wholesale expungement of the material.

[21] Moreover, the Rules expressly recognise that affidavits may be accompanied by documents verifying the facts stated.

The respondents' complaint that the applicant relies on third-party evidence is not, by itself, fatal. In modern litigation, particularly where the facts complained of occur at a site controlled by an alleged contemnor, third-party verification may be the only practical means of proof. What matters is whether the court can place reliance on the material, in light of all the circumstances, to determine whether contempt is established.

**The evidentiary points *in limine* are dismissed.**

[22] On disputes of fact, I accept that the respondents deny conducting mining activities at the Lonrho site.

But the law is clear that not every dispute of fact compels a referral to trial; the court must assess whether the dispute is genuine and material and whether the denial is more than a bald traverse.

Here, the respondents' denial sits uneasily with the applicant's detailed allegations, the existence of site-specific material placed before the court, and the context of an extant interdict directed precisely at preventing such activities.

The dispute raised is not of such a character as to render the matter incapable of resolution on the papers. Nor is an inspection in loco warranted where the dispute concerns compliance with an interdict and the parties have already placed visual material before the court.

[23] I am satisfied that the applicant has established the essential requirements for contempt: the existence of an extant court order; knowledge of that order by the respondents; and conduct inconsistent with the terms of that order, in circumstances that point to deliberate defiance rather than mere inadvertence.

In contempt matters the court must vindicate its authority, for the alternative is institutional paralysis and the erosion of constitutional governance.

[24] I emphasise this: if the respondents are not conducting mining activities at the Lonrho mining site, then they have nothing to fear from an order compelling compliance and providing a lawful enforcement framework. What they cannot do is to insist that the order is meaningless, optional, or enforceable only at their convenience.

[25] On sanction, the court must be firm but proportionate. The applicant's initial prayer for a US$500,000.00 fine was, as counsel conceded, excessive on the facts placed before the court.

A contempt sanction must serve both coercive and punitive functions, while remaining realistic and enforceable through the mechanisms contemplated by the Rules.

[26] The role of the police and the manner of enforcement require careful framing. The court cannot authorise arrest in anticipation of future disobedience without due process; that would offend the *audi alteram* partem principle and the requirements articulated in our jurisprudence.

At the same time, where the court has made a finding of contempt and imposed a penalty, enforcement must proceed lawfully through the sheriff or peace officers under the writ procedure.

Any arrest or deprivation of liberty must be based on lawful authority and objective investigation—evidence should be gathered by the police, and the alleged contemnor must be dealt with through regular legal process, not through self-help.

[27] In the result, the application succeeds.

[28] It is ordered that:

1. The respondents be and are hereby declared to be in contempt of the court order granted under the matter referenced in the record as HCH2159/25 / HH473/25.
2. The draft order sought by the applicant is granted with amendment as follows:
3. The first respondent shall pay a fine of US$100,000.00 (one hundred thousand United States dollars), which fine is wholly suspended on condition that the respondents, and all those acting through them (including employees, agents, and nominees), immediately cease and desist from conducting any mining activities at the

Lonrho Mining site, and thereafter comply fully with the interdict for so long as it remains extant.

4. The second, third and fourth respondents are each sentenced to three (3) months imprisonment, which sentence is wholly suspended on the same condition of strict compliance stated in paragraph [3] above.
5. For the avoidance of doubt, any enforcement that entails arrest or committal shall be carried out only through lawful process by the Sheriff or by a constable or other peace officer upon a writ issued in terms of rule 79, and not by the applicant.
6. Further, in keeping with the requirements of natural justice and the proper approach to contempt enforcement, the Officer in Charge, Concession Police Station (or such other local officer commanding the relevant jurisdiction) shall, upon any complaint of renewed mining activities at the Lonrho Mining site, attend the scene, investigate, and gather evidence before taking any arrest or enforcement step contemplated by law.
7. The respondents shall pay the costs of this application on the legal practitioner and client scale.

**MAMBARA J……**

*Gumbo and Associates,* applicant's legal practitioners
*Sibanda and Partners*, 1st – 4th respondents' legal practitioners